

**CHAPTER ccxxv.**

An Act to empower the mayor aldermen and burgesses of the county borough of Brighton to construct and work trainways and for other purposes. [11th August 1903.] A.D. 1903.

WHEREAS the borough of Brighton is a municipal borough under the government of the mayor aldermen and burgesses thereof (hereinafter referred to as "the Corporation") and is a county borough under the Local Government Acts 1888 and 1894 :

And whereas it is expedient that the Corporation be authorised to construct the tramways hereinafter described :

And whereas the Corporation are supplying electricity within the borough under the powers of the Brighton Electric Lighting Order 1883 :

And whereas by the Brighton Corporation Act 1900 the Corporation were empowered to purchase lands and establish a generating station at Southwick and to lay down electric lines to connect the same with their electric works within the said borough :

And whereas it is expedient that the Corporation be empowered to construct the subway in this Act mentioned for the purpose of laying down therein the electric lines for the purpose of such connection and also for other purposes :

And whereas it is expedient that further powers be conferred on the Corporation with respect to the supply of electricity :

And whereas the Corporation under a resolution passed in pursuance of section 62 of the Local Government Act 1894 are the burial authority for the parish of Brighton :

And whereas the area of the burial authority for the old parish of Preston includes the present parishes of Preston and Preston Rural and it is expedient that the parish of Preston should cease to form part of that area :

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—

And whereas it is expedient that the powers of the Corporation with respect to infectious diseases be extended :

And whereas it is expedient that the further powers hereinafter contained with respect to the borrowing of money be conferred upon the Corporation :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas estimates have been prepared by the Corporation of the cost of carrying into effect the powers by this Act conferred upon the Corporation in connection with the following matters and such estimates are as follows :—

For the purposes of the tramways fifty-five thousand pounds ;

For the purposes of the subway by this Act authorised ten thousand pounds :

And whereas an absolute majority of the whole number of the members of the council of the said borough at a meeting held on the twentieth day of November one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Sussex Daily News* a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate and the district fund and general district rate of the said borough in such proportions as may be determined by the Corporation :

And whereas such resolution was published twice in the *Brighton Herald* a newspaper published and circulating in the said borough and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the members of the council of the said borough at a further special meeting held in pursuance of a similar notice on the eighth day of January one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill for this Act in Parliament :

And whereas the owners and ratepayers of the said borough by resolution passed in the manner prescribed by the Public Health Act 1875 (Schedule III.) have consented to the promotion of the Bill for this Act :

And whereas plans and sections showing the lines and levels of the tramways and of the subway authorised by this Act and

showing the lands to be taken under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of all such lands have been deposited with the clerk of the peace for the county of Sussex and are hereinafter respectively referred to as the deposited plans sections and book of reference : A.D. 1903.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Brighton Corporation Act 1903. Short title.

2. This Act is divided into Parts as follows (that is to say) :— Act divided into Parts.

- Part I.—Preliminary.
- Part II.—Tramways.
- Part III.—Subway.
- Part IV.—Electricity.
- Part V.—Burial Authority.
- Part VI.—Infectious Disease.
- Part VII.—Lands.
- Part VIII.—Finance and Miscellaneous.

3. The following Acts and parts of Act (that is to say) :— Incorporation of general Acts.
 The Lands Clauses Acts ; and
 Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 ;

as far as they are applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated with and form part of this Act Provided that section 43 of the Tramways Act 1870 shall not apply to the portion of Tramway No. 1 by this Act authorised which will be situate in the Steyning East Rural District.

4. In this Act unless the subject or context otherwise requires the following words and expressions have the following meanings (that is to say) :— Interpretation.

“ The borough ” means the county borough of Brighton :

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- “ The Corporation ” means the mayor aldermen and burgesses of the borough :
- “ The council ” means the town council of the borough :
- “ The town clerk ” and “ the medical officer of health ” mean respectively the town clerk and the medical officer of health of the borough :
- “ The borough fund ” “ the borough rate ” “ the district fund ” and “ the general district rate ” mean respectively the borough fund borough rate district fund and general district rate of the borough :
- “ The Act of 1900 ” means the Brighton Corporation Act 1900 :
- “ Infectious disease ” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the borough :
- “ Engine ” includes motor :
- “ Channels ” means and includes channels passages and tubes for cables wires and electric lines :
- “ The tramways ” means the tramways authorised by this Act :
- “ Corporation tramways ” means and includes the tramways authorised by the Act of 1900 the Brighton Corporation Tramways Order 1902 and this Act and any other tramways for the time being belonging to the Corporation :
- “ Mechanical power ” means electric and every other motive power (other than steam locomotives or animal power) :
- “ Electric line ” has the meaning assigned to it by Part III. of the Act of 1900 :
- “ The Hove Corporation ” means the mayor aldermen and burgesses of the borough of Hove :
- “ Burial authority ” means any burial board and any council committee or other local authority having the powers and duties of a burial board :

Terms to which meanings are assigned by enactments incorporated with this Act or which have therein special meanings have in this Act and for the purposes of this Act the same respective meanings.

PART II.

TRAMWAYS.

Power to
make tram-
ways.

5. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways hereinafter described in the lines and according to the levels shown on the

deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates sleepers channels junctions turntables turnouts crossings and passing places stables carriage engine boiler and dynamo houses storage battery and transformer houses waiting rooms sheds buildings plant machinery and conveniences connected therewith respectively. A.D. 1903.

The following are the tramways :—

Tramway No. 1 (1 mile 1 furlong and 6·40 chains or thereabouts in length of which 1 chain is single and 1 mile 1 furlong and 5·40 chains double line) commencing in the Dyke Road at a point one chain or thereabouts north-west of the junction of Dyke Road with Goldsmid Road and terminating at a point 4·50 chains or thereabouts southward of the point at which the boundary between the parishes of Preston and Patcham crosses the Dyke Road :

Tramway No. 1A (double line 1·90 chains or thereabouts in length) commencing in Chatham Place by a junction with the existing tramway therein at a point one chain or thereabouts north-east of the junction of Chatham Place with Prestonville Road and terminating in Dyke Road by a junction with Tramway No. 1 by this Act authorised at or about its commencement as hereinbefore described :

Tramway No. 2 (double line 1 furlong and 1·05 chains or thereabouts in length) commencing in Buckingham Place by a junction with Tramway No. 4 by this Act authorised at a point one chain or thereabouts east of the junction of Buckingham Place with Chatham Place and terminating at the point at which the boundary between the parishes of Brighton and Hove crosses Goldsmid Road :

Tramway No. 3 (3 furlongs and 8·50 chains or thereabouts in length of which 9·20 chains are single and 2 furlongs and 9·30 chains double line) commencing in Grand Parade by a junction with the existing tramway therein at a point 0·70 chain or thereabouts southward of the northern end of the southernmost enclosure of the Victoria Gardens and terminating in Queen's Road at a point 0·40 chain or thereabouts south of the main entrance gates to the London Brighton and South Coast Railway Station :

Tramway No. 3A (single line 1·50 chains or thereabouts in length) commencing in the road between the northern and southern enclosures of Victoria Gardens by a junction with Tramway No. 3 by this Act authorised at a point one chain or thereabouts west of the junction of the said road

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with Grand Parade and terminating in Grand Parade by a junction with the existing tramway therein at a point one chain or thereabouts north of the junction of the said road with Grand Parade :

Tramway No. 3B (single line 2·60 chains or thereabouts in length) commencing in Gloucester Place by a junction with the existing tramway therein at a point two chains or thereabouts north of the junction of Gloucester Place with the aforesaid road between the northern and southern enclosures of Victoria Gardens and terminating in Marlborough Place by a junction with Tramway No. 3 by this Act authorised at a point 0·50 chain or thereabouts east of the junction of North Road with Marlborough Place :

Tramway No. 3c (single line 3·00 chains or thereabouts in length) commencing in North Road by a junction with Tramway No. 3 by this Act authorised at a point two chains or thereabouts east of the junction of Cheltenham Place with North Road and terminating in Marlborough Place by a junction with the existing tramway therein at a point 2·50 chains or thereabouts south of the junction of North Road with Marlborough Place :

Tramway No. 4 (2 furlongs and 9·05 chains or thereabouts in length of which one chain is single and two furlongs and 8·05 chains double line) commencing in Terminus Road at a point one chain or thereabouts north of the junction of Guildford Road with Terminus Road and terminating in Dyke Road by a junction with Tramway No. 1 by this Act authorised at or about its commencement as hereinbefore described.

Tramway
No. 4 to
form con-
tinuous route
with Tram-
way No. 3.

6. Notwithstanding anything in this Act the Corporation shall not commence the construction of Tramway No. 4 by this Act authorised until they shall have obtained power to construct a double line of tramway so as to form a junction between that tramway and Tramway No. 3 by this Act authorised nor shall the Corporation open the said Tramway No. 4 for public traffic until such junction shall have been completed so as to form a through continuous line of tramway with Tramway No. 3 Provided that in working such continuous line of tramway no car shall except for the purpose of avoiding interference with the traffic of the street stop opposite the entrance from Terminus Road to the station of the London Brighton and South Coast Railway Company or so as to obstruct the traffic through the station gates in Queen's Road.

7. The following sections of the Act of 1900 shall as far as the same are applicable extend and apply to the tramways and to the Corporation in respect thereto in as full and complete a manner as if the said sections were re-enacted in this Act with reference thereto (that is to say) :—

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Incorporation of sections of Act of 1900 as to tramways.

- 6 Gauge of tramways.
- 8 Inspection by Board of Trade.
- 9 Tramways to be kept on level of surface of road.
- 10 Further provisions as to construction of tramways.
- 11 As to rails of tramways.
- 13 Power to make interlacing lines &c.
- 14 Power to make additional crossings &c.
- 15 Passing places to be made at narrow places.
- 17 Temporary tramway to be made where necessary.
- 18 Power to Corporation to work tramways.
- 19 Rates for passengers.
- 20 Passengers' luggage.
- 21 Animals and goods.
- 22 Corporation not bound to carry animals goods &c.
- 23 As to fares on Sundays or holidays.
- 24 Cheap fares for labouring classes.
- 25 Periodical revision of rates and charges.
- 26 Provisions as to motive power.
- 27 Special provisions as to use of electrical power.
- 28 Byelaws.
- 29 Amendment of Tramways Act 1870 as to byelaws by Corporation.
- 30 Orders &c. of Board of Trade.
- 31 Recovery of penalties.
- 34 Penalty for offences.
- 35 Provision as to general Tramway Acts.

And the provisions of sections 12 (Penalty for not maintaining rails) and 16 (Application of road materials excavated in construction of works) of the Act of 1900 shall in like manner apply to and in the case of any tramways or portions of tramways which may be situate in the borough and to the Corporation in respect thereto.

8. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of any of the Corporation tramways by mechanical power Provided that—

Attachment of brackets to buildings

- (1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a

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petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :

(2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same power as under proviso (1) of this section :

(3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

For protection of
Postmaster-
General.

9.—(A) Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

(B) In the event of any of the Corporation tramways being worked by electricity the following provisions shall have effect :—

(1) The Corporation shall construct their electric lines and other works of all descriptions and shall work their tramway undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of such undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference

which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration : A.D. 1903.

- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of such undertaking the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the Corporation tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Corporation as to any requirement so made shall be determined by arbitration :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of any works forming part or used for the purposes of the tramway undertaking of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any works forming part or used for the purposes of such undertaking or to the working of their tramway undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for tramway purposes by the Corporation at any such works enter thereon for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations :

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- (5) In the event of any contravention of or wilful noncompliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Corporation" includes their lessees and any person owning working or running carriages on any of the Corporation tramways.

(c) If the Corporation use electrical power as the motive power on any omnibuses run by them under the provisions of the section of this Act of which the marginal note is "Corporation may run omnibuses" the Corporation shall (unless such power is entirely contained in and carried along with the omnibuses for moving which it is so used in such manner that no magnetic or other influence is created which is likely to cause injurious affection to a telegraphic line) in such user be subject to the provisions of this section.

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10. If at any time it be proved that any injury or damage to any mains pipes or apparatus of the Brighton and Hove General Gas Company shall have resulted from the use of electric current on any of the tramways authorised by this Act nothing in this Act shall relieve the Corporation from liability to make compensation for such injury or damage.

Saving in case of damage to mains &c.

11. The following provisions shall apply to and in the case of the portions of Tramway No. 1 which may be situate outside the borough (that is to say) :—

Provisions as to tramways in borough of Hove and parish of Preston Rural.

(1) Any paving metalling or material excavated by the Corporation in the construction of Tramway No. 1 from any road under the jurisdiction or control of any road authority other than the Corporation may be applied by the Corporation so far as may be necessary in or towards the reinstating of the road and the maintenance for six months after completion of the said tramway of so much of the roadway on either side of such tramway as the Corporation are by section 28 of the Tramways Act 1870 required to maintain and save as hereinafter mentioned the Corporation shall if so required deliver the surplus paving metalling or material so excavated and not used or required to be retained for the purposes aforesaid to the surveyor of such road authority or to such person or persons as he may appoint to receive the same. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Corporation and may be dealt with removed or disposed of by them in such manner as they may think fit :

(2) Where such paving metalling or material is excavated from any portion of the Dyke Road situate between the

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boundary of the borough of Hove and the boundary of the parish of Patcham which the Corporation are bound to repair at the joint expense of themselves and the Hove Corporation in pursuance of an agreement dated the nineteenth day of January one thousand eight hundred and ninety-three and made between the Corporation of the first part the Hove Commissioners of the second part the guardians of the poor of Steyning Union of the third part and certain other parties of the fourth fifth sixth and seventh parts the Corporation shall retain the surplus paving metalling or material excavated from such portion of the Dyke Road as aforesaid and apply the same in or towards the repair of such portion of Dyke Road or dispose of the same and apply the proceeds as aforesaid towards the expense of such repair :

- (3) Any difference between the Corporation and any road authority or their surveyors or other person with reference to any of the matters aforesaid shall be settled by a referee to be nominated by the Board of Trade on the application of either party :
- (4) The Corporation shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the portion of the Tramway No. 1 situate outside the borough and the substructure upon which the same rest and if the Corporation at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues and such penalty shall be a penalty within the meaning of section 56 of the said Act In case it is represented in writing to the Board of Trade by the road authority of the district in which such portion of Tramway No. 1 is situate or by twenty inhabitant ratepayers of such district that the Corporation have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Corporation to such penalty

or penalties in respect thereof as is or are by this section A.D. 1903.
imposed :

(5) The Hove Corporation and the Steyning East Rural District Council shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or concurrence of the Corporation and the provisions contained in sections 32 and 33 of the Tramways Act 1870 shall be applicable in the case of any sewer or private drain of or under the control of the Hove Corporation or the Steyning East Rural District Council as if the same were a pipe for the supply of gas or water :

(6) Nothing in this Act shall in any way prejudice abridge or affect the rights duties or liabilities of the respective parties to the said agreement dated the nineteenth day of January one thousand eight hundred and ninety-three and made between the Corporation of the first part the Hove Commissioners of the second part the guardians of the poor of the Steyning Union of the third part and certain other parties of the fourth fifth sixth and seventh parts relating to the repair of certain widened portions of Dyke Road therein more particularly described under that agreement except that the covenant numbered 10 in such agreement shall after the passing of this Act be read and construed as if after the words "during such financial year" where such last-mentioned words first occur in such covenant the following words had been inserted (that is to say) "less the sum which
" the Corporation shall have expended under any statutory
" obligation imposed by the Brighton Corporation Act 1903
" or any Act or Acts incorporated therewith."

12. The following provisions shall unless otherwise agreed between the Corporation and the Hove Corporation have effect (that is to say) :— For protec-
tion of Hove
Corporation.

(1) If and when the Hove Corporation shall have constructed a tramway system which can be used in connection with the portion of the Tramway No. 1 by this Act authorised which is situate in the borough of Hove the Hove Corporation shall have running powers for passengers and parcels but not for goods over the same and over the portion of the said Tramway No. 1 which is between the boundary of the borough of Hove and Vernon Terrace the Hove Corporation paying to the Corporation such proportion of fares received by them as may be agreed upon or in case of difference as may be settled by arbitration Provided that in the exercise

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of such running powers the Hove Corporation shall give reasonable precedence to the traffic of the Corporation and shall observe all byelaws rules and regulations made by the Corporation in reference to the portion of tramway so run over and the traffic thereon :

- (2) The Corporation shall repay annually to the Hove Corporation the sum which the Hove Corporation may expend in keeping the portion of the Dyke Road within the parish and borough of Hove in repair until such time as the Hove Corporation shall exercise the running powers over the Tramway No. 1 by this section granted to them and if and when the Hove Corporation shall exercise such running powers then from the date of the exercise of such powers the Corporation shall contribute one half of such expense unless and until the Hove Corporation shall purchase the portion of Tramway No. 1 which is situate within the borough of Hove :
- (3) Section 43 of the Tramways Act 1870 shall in its application to that portion of Tramway No. 1 which is situate within the parish and borough of Hove and the Corporation in relation thereto be read and have effect as if the period of forty-two years were substituted therein for the period of twenty-one years therein mentioned and from and after the purchase by the Hove Corporation of such portion of Tramway No. 1 the Corporation shall have running powers over the same upon such terms and conditions as may in default of agreement be settled by arbitration :
- (4) Notwithstanding the section of this Act the marginal note whereof is "Corporation may run omnibuses" no omnibuses shall be run for hire or take up or set down passengers under the powers of that section within the borough of Hove except with the licence of the Hove Corporation under the law relating to hackney carriages for the time being in force within the borough of Hove and the Corporation shall in respect of such omnibuses then running for hire taking up or setting down passengers in the borough of Hove be bound by any byelaws for omnibuses for the time being in force within the borough of Hove :
- (5) If any dispute or difference shall arise between the Hove Corporation and the Corporation concerning any matter or thing contained or referred to in this section or as to the reasonableness of any requirement of the Hove Corporation or as to the rights duties or liabilities of either party under this section then the dispute or difference shall be referred

to an arbitrator to be agreed on between the parties or in default to be appointed on the application of either party by the Board of Trade. A.D. 1903.

13. Notwithstanding anything in this Act contained the following provisions shall have effect for the benefit and protection of the Steyning East Rural District Council unless otherwise agreed between the Corporation and the council (that is to say) :—

For protection of Steyning East Rural District Council.

- (1) In this section the expressions "the council" means the Steyning East Rural District Council "the district" means the rural district of Steyning East "the road" means such part or parts of Dyke Road as is or are within the district and "the tramway" means such portion or portions of Tramway No. 1 as is or are within the district :
- (2) Nothing in this Act shall in any way prejudice abridge or affect the rights duties or liabilities of the respective parties to an agreement dated the 19th day of January 1893 and made between the Corporation of the first part the Hove Commissioners of the second part the guardians of the poor of the Steyning Union of the third part and certain other parties of the fourth fifth sixth and seventh parts relating to the repair of certain widened portions of Dyke Road therein more particularly described under that agreement :
- (3) The proviso to subsection (5) of section 32 of the Tramways Act 1870 shall extend and apply to any sewers conduits channels or other underground works which may be laid by the council in the road after the construction of the tramway :
- (4) The position design and construction of all posts erected in the district shall be such as the council shall reasonably approve Provided that if before the erection of any such posts in the district the Corporation deliver to the council a drawing and a description of the same and a plan showing the proposed position thereof and the council do not within one calendar month give to the Corporation notice of any objection they shall be taken to have agreed to the position design and construction of such posts as shown by the said drawing description and plan And provided also that any such post shall be removed by the Corporation within one calendar month after receipt of notice in writing from the council requiring the removal thereof (such notice not to be arbitrarily or unreasonably given) but the Corporation may replace such post within the district in such position as the council shall reasonably approve :

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(5) If at any time hereafter any local authority company or person shall be authorised by any Provisional Order or Act of Parliament to construct any tramway along Dyke Road north of and so as to form a junction with Tramway No. 1 at its termination as above described and the Corporation do not within two years from the passing of any Act confirming such Provisional Order or of such Act construct and complete Tramway No. 1 the powers granted by this Act to the Corporation to construct such tramway shall absolutely cease and determine :

(6) The fares to be charged by the Corporation for passengers travelling upon the Tramways Nos. 1 and 4 for a distance of one mile only or of less than one mile shall not exceed one penny per passenger :

(7) If any dispute or difference shall arise between the council and the Corporation concerning any matter or thing contained or referred to in this section or as to the reasonableness of any requirement of the council or as to the rights duties or liabilities of either party under this section then the dispute or difference shall be referred to an arbitrator to be agreed on between the parties or in default to be appointed on the application of either party by the Board of Trade.

Temporary
stoppage
of streets.

14. The Corporation may during the execution and for the purposes of any work by this Act authorised (but as regards streets within the districts of other local authorities only with the consent of the local authority for the district affected) stop up any street and prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same for any reasonable time The Corporation shall provide reasonable access for all persons so bonâ fide going to or returning from any such house.

Period for
completion
of tramways.

15. The tramways shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act granted for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall be then completed.

Agreements
for leasing
working &c.

16.—(1) The Corporation may enter into and carry into effect contracts and agreements with the Hove Corporation with respect to the construction repair maintenance and working of the portion of Tramway No. 1 which will be situate within the borough of Hove and of any tramway or portion of tramway which the

Hove Corporation may be authorised to construct in connection with or forming a junction with any of the Corporation tramways. A.D. 1903.

(2) The Corporation may enter into and carry into effect agreements with any local authority company body or person owning leasing running over or using any tramway or light railway with which any tramway of or leased to worked or run over by the Corporation connects with respect to the lease reconstruction alteration equipment working running over use management and maintenance of all or any of the respective tramways light railways and works owned by leased to run over or used by any of the contracting parties or any part or parts thereof respectively the making of all necessary junctions the supply by any of the contracting parties to the other or others of them under and during the continuance of any such agreement of rolling stock plant machinery and electrical energy or power necessary for the purposes of such agreement the appointment and removal of officers and servants the payments to be made and the conditions to be performed in respect of any such lease or other such contract or agreement or in respect of such working use management maintenance or the exercise of running powers the interchange accommodation conveyance transmission and delivery of traffic coming from or destined for the respective undertakings of the contracting parties and the payment collection division and apportionment of the revenue arising from the respective undertakings and the payment of any fixed or contingent rent.

17.—(1) The Corporation may provide, maintain work and run omnibuses— Corporation
may run
omnibuses.

- (A) Within the borough in connection with the Corporation tramways when the running of carriages thereon is impracticable or during the construction re-construction alteration or repair thereof or in extension of any of the Corporation tramways or for the purpose of connecting together any of such tramways and also for testing the amount of traffic along any route or between any particular points ; and
- (B) Beyond the borough (1) along the route of Tramway No. 1 and (2) in extension of Tramway No. 2 for the purpose of connecting the same with any tramways in the borough of Hove :

And the Corporation may demand take and recover tolls and fares for the use of such omnibuses.

(2) The Corporation may purchase by agreement take on lease and hold lands and buildings and may provide such plant

A.D. 1903. — appliances and conveniences as may be necessary or expedient for the establishment running and equipment of such omnibuses.

(3) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in or upon any omnibus belonging to them. Provided that any such byelaw shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

(4) All expenses and receipts incurred in or arising from the exercise of the powers of this section shall be deemed to be part of the expenses and receipts of the tramway undertaking of the Corporation.

(5) If the Corporation use electrical power as the motive power on such omnibuses the Corporation shall (unless such power is entirely contained in and carried along with the omnibuses for moving which it is so used) be subject to the provisions of sections 26 and 27 of the Act of 1900 with respect to the use of mechanical power on tramways.

(6) The Corporation shall not for a period of three years from the first day of January one thousand nine hundred and four run omnibuses along the following routes now served by the Brighton Hove and Preston United Omnibus Company Limited (namely) from Castle Square westward along North Street and Western Road from Castle Square eastward by St. James' Street Bristol Road and St. George's Road to Kemp Town and from Castle Square via North Street and Queen's Road to the Brighton Central Railway Station. Provided that the prohibition contained in this subsection shall cease to operate in the event of the said company ceasing to run omnibuses on any of such routes and that nothing in this subsection contained shall be held to prevent the Corporation from running omnibuses across either or any of such routes from north to south.

Penalty for
malicious
damage.

18. If any person wilfully does or causes to be done with respect to any apparatus used for or in connection with the working of any tramway of the Corporation anything which is calculated to obstruct or interfere with the working of such tramway or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any tramway of the Corporation shall be liable to a penalty not exceeding twenty pounds.

PART III.

A.D. 1903.

SUBWAY.

19. Subject to the provisions of this Act the Corporation may in the lines and situations and according to the levels shown on the deposited plans and sections relating thereto make and maintain—

Power to
make sub-
way under
Shoreham
Harbour.

A subway under the east arm of New Shoreham Harbour and under the towpath and lands on the south side thereof commencing at or near the south-east corner of Nicholson's Wharf and terminating on the south side of the said east arm of New Shoreham Harbour near the north-east corner of the Brighton Corporation electricity generating station now in course of construction :

And the Corporation may lay down maintain use repair remove and alter electric lines gas and water and other mains and pipes and telephone and telegraph wires and other works therein and connect such electric lines with the generating station authorised by the Act of 1900 and with any electric lines authorised by that Act to be laid down by the Corporation but nothing in this section contained shall interfere with or prejudice the rights and privileges conferred upon the Postmaster-General by the Telegraph Acts 1863 to 1899.

20. In making the subway by this Act authorised the Corporation may deviate laterally from the lines thereof to any extent within the limits of deviation defined on the deposited plans and may deviate from the levels thereof as marked on the deposited sections to such an extent as may be found necessary or convenient Provided that the Corporation shall not in making such deviation of the levels of the said subway bring any portion of the works of the said subway within fourteen feet of the existing bed of Shoreham Harbour.

Power to
deviate.

21. The Corporation may in connection with and for the purpose of the subway by this Act authorised from time to time make and maintain all such hydraulic and other lifts stairs stairways inclined planes and other means of ingress and egress to and from the subway and all such shafts and openings for ventilating the same and all such tunnels tubes piers abutments walls dams stages pumps pipes sewers approaches and other works machinery apparatus and conveniences as may be necessary or convenient in or for the construction maintenance repair and user of such subway.

Incidental
works.

22. The Corporation and any local authority company body or person may enter into and carry into effect agreements for or with respect to the user of the subway by this Act authorised and the payments for such user,

Power to
enter into
agreements
as to user of
subway.

A.D. 1903.

Works below
high-water
mark not
to be con-
structed
without con-
sent of Board
of Trade.

23. The Corporation shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Corporation shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Corporation and the amount of such costs and charges shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

Survey of
works by
Board of
Trade.

24. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Corporation on in over through or across tidal lands or tidal water or of the intended site of any such work the Corporation shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Corporation to the Crown and be recoverable as a Crown debt or summarily.

Abatement
of works
abandoned
or decayed.

25. If a work constructed by the Corporation on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Corporation and the amount of such expense shall be a debt due from the Corporation to the Crown and be recoverable as a Crown debt or summarily.

For protec-
tion of
Shoreham
Harbour
Trustees.

26. Notwithstanding anything contained in this Act or in any of the Acts incorporated herewith the Corporation shall be responsible for and make good to the Shoreham Harbour Trustees all damages losses and expenses which may be occasioned to such trustees or to the said New Shoreham Harbour or the navigation thereof through or by reason of or consequent upon the construction or existence of the subway under the bed of the east arm of the said harbour and shall effectually indemnify and hold harmless such

trustees from all claims and demands upon or against them by A.D. 1903.
reason of the construction or existence of the said subway.

PART IV.

ELECTRICITY.

27. In this Part of this Act the expressions "local authority" and "electricity" have respectively the same meanings as in the Electric Lighting Act 1882. Definition.

28. Section 63 of the Brighton Electric Lighting Order 1883 shall be read and have effect as if four per cent. per annum had been mentioned therein as the rate of interest to be paid by the undertakers on any deposit to be made under such section in lieu of the rate of five per cent. per annum as mentioned in such section. Amendment
of Brighton
Electric
Lighting
Order 1883.

29. The purposes for which the Corporation may under the powers of the Brighton Electric Lighting Order 1883 and the Act of 1900 and the Acts incorporated therewith generate and supply electricity shall include the purpose of working by electrical power any Corporation tramways whether situate within or beyond the borough. As to supply
of electricity.

30.—(1) The Brighton Electric Lighting Order 1883 shall be read and have effect as if the parishes of Rottingdean Ovingdean Patcham Falmer Preston Rural Hangleton Portslade Old Shoreham Kingston-by-Sea Lancing and West Blatchington had been included in Schedule B to that Order annexed and for the purposes of the said Order such parishes shall be deemed to form part of the area comprised in the said Schedule Provided (A) that the provisions of the Schedule to the Electric Lighting (Clauses) Act 1899 shall extend and apply to the supply of electrical energy and to the exercise of the powers of the said Order by the Corporation within such of the said parishes as may for the time being be included within the area of supply as defined in such Order and shall within such parishes control and supersede such of the provisions of the said Order as are inconsistent therewith and (B) that the Corporation shall not exercise any of the powers of the said Order as so varied within any of the said parishes without the written consent under the seal of the local authority of the district in which such parish is included being first obtained and until such consent has been applied for by the Corporation and obtained from such local authority the Corporation shall be under no obligation in respect of the supply of electricity under the said Order as so varied in any of the said parishes. Extension
of area of
supply.

A.D. 1903.

(2) The prices to be charged by the Corporation for electricity supplied by them in any portion of the said parishes shall be such prices as shall be agreed between the local authority of the district in which such supply is to be given and the Corporation and approved by the Board of Trade but such prices shall be fixed annually for the then ensuing year at such rate (not exceeding the maximum rates specified in the Brighton Electric Lighting Order 1883) that so far as is reasonably practicable the revenue for that year derived from the supply of electricity in the said parishes shall not be less than the expenditure for that year in connection with the supply in such parishes.

For protection of local authorities of Steyning East and West and Newhaven.

31. Notwithstanding anything contained in the section of this Act of which the marginal note is "Extension of area of supply" the following provisions shall have effect (that is to say):—

(A) In this section the expressions "the district" and "the local authority" mean respectively as regards the rural district of Steyning East that district and the district council of that district as regards the rural district of Steyning West that district and the district council of that district and as regards the rural district of Newhaven that district and the district council of that district :

(B) No consent of the local authority to the exercise by the Corporation of any of the powers of the Brighton Electric Lighting Order 1883 shall be valid unless given in pursuance of a resolution passed by a majority of the whole number of the members of the local authority at a meeting held after ten days' previous notice :

(c) Except during any period for which the Corporation are authorised by the consent of the local authority to exercise the powers of the said Order within the district the Corporation shall not oppose any application made by the local authority or by any person or company with the consent of the local authority for power to supply electricity within the district except so far as may be necessary for the purpose of obtaining clauses for the protection of any water mains or other works or property of the Corporation.

Power to supply electricity in neighbouring districts.

32. Where any local authority for any district comprising any parish referred to in the section of this Act of which the marginal note is "Extension of area of supply" or any company or person supplying electricity therein or any local authority for or company supplying electricity in any district adjacent or in proximity to the area for the time being of the Corporation for the supply of

electricity or on the route of any electric line belonging to the Corporation desires to be supplied with electricity by the Corporation such local authority or company being authorised to supply electricity under the provisions of the Electric Lighting Acts 1882 and 1888 the Corporation may supply such electricity in bulk to any such local authority company or person :

A.D. 1903.

Provided that so long as the Hove Electric Lighting Company Limited shall be the undertakers for the purposes of the Hove Electric Lighting Order 1890 nothing in this Part of this Act shall authorise the Corporation to supply electricity within the area of supply as defined by that Order without the written consent of that company first obtained.

33. The Corporation on the one hand and any local authority company or person owning or working tramways light railways or railways within or without the area within which the Corporation are for the time being authorised to supply electricity which are connected directly or indirectly with tramways light railways or railways within that area on the other hand may enter into and carry into effect agreements for the supply by the Corporation to such authority company or person of electrical energy for the purposes for which such authority company or person is empowered to use the same Provided that no energy shall be supplied or shall continue to be supplied by the Corporation under the provisions of this section in any district in which any local authority company or person shall be supplying electrical energy under statutory authority without the consent in writing of such local authority company or person.

Supply of electricity for traction purposes.

34.—(1) Any owner or occupier of premises having a separate supply of energy who after the passing of this Act requires the Corporation to give for such premises a supply of electricity shall in addition to the contract which he is required to enter into by section 41 of the Brighton Electric Lighting Order 1883 enter into a written contract with the Corporation if required by them so to do to pay such minimum annual amount (in addition to the payments due under such first-mentioned contract) as will give the Corporation a reasonable return on the outlay incurred by the Corporation in providing any plant to meet the possible maximum demand of such owner or occupier and other standing and establishment charges incurred or to be incurred by the Corporation to meet such demand.

Extending section 41 of Brighton Electric Lighting Order 1883.

(2) If any owner or occupier of premises for which the Corporation give a supply of electricity shall at any time after

A.D. 1903. — the date on which the Corporation commenced to give such supply establish or take a separate supply of energy for such premises and the Corporation have not received from such owner a reasonable return on the outlay incurred by them in providing plant to meet the possible maximum demand of such owner or occupier and other charges aforesaid in reference to such supply the Corporation may require such owner or occupier either to pay such sum in addition to any payments due under any then existing contract between the Corporation and such owner or occupier or to take from the Corporation and pay for such minimum supply of electricity as will ensure to the Corporation a reasonable return on such outlay.

(3) Any difference which may arise between the Corporation and any such owner or occupier under this section shall be determined by an electrical engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of section 41 of the said Order as to security for the payment of moneys due shall extend and apply to any payments to be made under the provisions of this section and any moneys due under any contract made in accordance therewith.

Corporation
may refuse
to supply
electricity
in certain
cases.

35. The Corporation may refuse to supply electricity to any person whose payments for the supply of electricity are for the time being in arrear whether any such payments be due to the Corporation in respect of a supply to the premises in respect of which such supply is demanded or in respect of a supply to other premises.

PART V.

BURIAL AUTHORITY.

Detachment
of parish of
Preston from
Preston and
Preston
Rural burial
area.

36. From and after the date of the passing of this Act the parish of Preston shall cease to form part of the area under the jurisdiction of the burial authority for the parishes of Preston and Preston Rural and that authority shall cease to exercise any jurisdiction within the parish of Preston.

As to trans-
actions of
burial board
business.

37. Notwithstanding anything contained in the Burial Acts 1852 to 1885 or the Burial Act 1900 or any other Act the council may exercise any of the powers of the Corporation as a burial authority in the same manner and at the same time and subject to the same notices as all other powers of the Corporation are exerciseable by the council and without being required to give any special notice referring to the business of the burial authority to be transacted at any meeting of the council.

PART VI.

A.D. 1903.

INFECTIOUS DISEASE.

38. Where an inmate of any building used for human habitation within the borough is suffering from any infectious disease then unless such building is a hospital in which persons suffering from an infectious disease are received the following provisions shall have effect (that is to say):—

Medical officer may require information as to inmates of houses in which persons are suffering from infectious disease.

- (1) The head of the family to which such inmate (in this section referred to as "the patient") belongs and failing him the nearest relative of the patient present in the building or being in attendance on the patient and failing such relative every person in charge of or in attendance on the patient shall upon demand in writing from the medical officer of health furnish the following particulars or such of them as may be demanded relating to the patient and to the members of the family of the patient so far as the same are within his knowledge or can be reasonably obtained by him (*viz.*):—

(A) The name employment or occupation and place of employment or occupation of the patient ;

(B) The names of the members of the family of the patient being inmates of the building in which the disease has occurred and their employment or occupation and place of employment or occupation and in the case of children attending school the names of the schools attended :

- (2) Every person being an inmate of the building in which the disease has occurred shall upon demand in writing by the medical officer of health furnish the following particulars or such of them as may be demanded :—

The names and employment or occupation of himself and the members of his family being inmates of such building and in the case of children attending school the names of the schools attended :

- (3) The employer of any person employed in but not an inmate of the building in which the disease has occurred shall upon receipt of notice in writing from the medical officer of health of the existence of the disease and written demand for the name of any person so employed therein furnish such name if the same is within his knowledge or can be ascertained by him by any reasonable means to the medical officer of health :

A.D. 1903.

(4) Every person required by this section to furnish information who fails to give the same or wilfully gives false information with reference thereto shall be liable to a penalty not exceeding forty shillings.

PART VII.

LANDS.

Power to
take lands.

39. Subject to the provisions of this Act the Corporation may enter upon take and use for the purposes of the subway authorised by this Act and the works in connection therewith any of the lands shown on the deposited plans and described in the deposited book of reference in connection therewith and which the Corporation may require for such purposes.

Correction
of errors &c.
in deposited
plans and
book of
reference.

40. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices (not being members of the council) for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Sussex and a duplicate thereof shall also be deposited with the town clerk of the borough or clerk of the district council of the district in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Limitation of
time for com-
pulsory pur-
chase of lands.

41. The powers of the Corporation under this Act for the compulsory purchase of lands shall not be exercised after the expiration of three years from the passing of this Act.

Power to
take ease-
ments &c. by
agreement.

42. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation

any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

A.D. 1903.

43. Whereas the subway by this Act authorised is intended to be constructed through or under the east arm of New Shoreham Harbour and under other lands described in the Schedule to this Act annexed at a depth of thirty feet or thereabouts below the surface of such lands Therefore notwithstanding any rule of law to the contrary or anything contained in the ninety-second or any other sections of the Lands Clauses Consolidation Act 1845 or any Act amending the same the Corporation may purchase and acquire an easement or right of constructing the said subway under New Shoreham Harbour and the foreshores thereof and the said lands described in the said Schedule and may appropriate and use the subsoil of all such lands and of the harbour and foreshore without being required to take any lands or any part of the bed of the harbour or of the foreshore and the Corporation may give notice to treat in respect of any such easement or right and may in such notice describe the nature thereof and the provisions of the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement shall extend and apply to the acquisition of such easement and right as if they were lands within the meaning of those Acts Provided always that nothing in this section contained nor any dealing with the lands described in the said Schedule in pursuance thereof shall relieve the Corporation from the liability to compensation under the sixty-eighth section of the Lands Clauses Consolidation Act 1845 in respect of any part of the said lands through or under which the Corporation may purchase or acquire an easement or right of constructing the subway.

As to easements under property.

44.—(1) The Corporation shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

Restriction on taking houses of labouring class.

(2) If the Corporation acquire or appropriate any house or houses for the purposes of this Act in contravention of the

A.D. 1903. — foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them and the word "house" means any tenement separately occupied by any person or persons.

Power to
retain sell
&c. lands.

45. Notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit and may from time to time sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they think fit and in the case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest in any lands acquired by them under this Act and may sell and exchange and dispose of any rents reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Corporation
may use their
own lands
for purposes
of Act.

46. The Corporation may with the consent of the Local Government Board subject to such conditions as that Board may prescribe and to the provisions (if any) under which such lands were acquired appropriate and use for the purposes of this Act any lands from time to time vested in them and forming part of their corporate estate.

PART VIII.

FINANCE AND MISCELLANEOUS.

Power to
borrow.

47. The Corporation may from time to time borrow at interest—

(A) On the security of the tramway revenue and if they think fit (as a collateral security) of the borough fund and

borough rate for the purposes of their tramway undertaking such sums as they may deem requisite not exceeding fifty-five thousand pounds : A.D. 1903.
—

(B) On the security of the district fund and general district rate for the purposes of Part III. of this Act and for lands and easements required in connection therewith such sum as they may deem requisite not exceeding ten thousand pounds :

(c) On the security of the borough fund and borough rate and district fund and general district rate or either of them for payment of the costs charges and expenses referred to in the section of this Act of which the marginal note is "Costs of Act" such sum as may be ascertained as hereinafter provided :

Provided always that in case further moneys may be required for any of the aforesaid purposes or other the purposes of this Act the Board of Trade in the case of any such further moneys being required for tramway purposes and in all other cases the Local Government Board may from time to time at the request of the Corporation authorise them to borrow such further sums for all or any of such purposes as the Board of Trade or the Local Government Board (as the case may be) may from time to time think fit and the provisions of this Act (other than those of the section of this Act the marginal note whereof is "As to repayment of borrowed moneys" relating to the postponement of the first payment of instalments or to a sinking fund) shall mutatis mutandis apply to the further sums so borrowed :

And in calculating the amount which the Corporation may borrow under the provisions of any other enactment the amount which the Corporation may borrow under or for the purposes of this Act shall not be reckoned and the power of the Corporation of borrowing and re-borrowing for the purposes of this Act shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts.

The provisions of sections 236 237 238 and 239 of the Public Health Act 1875 with respect to mortgages to be executed by a local authority (except where the same are in this Act expressly altered or varied) shall apply in the case of all mortgages granted by the Corporation under this Act as if they were with necessary modifications re-enacted in this Act :

Provided always that the respective mortgagees shall be entitled one with another to their respective proportions of the revenue fund and rate comprised in their mortgages respectively

A.D. 1903. — according to the respective sums in such mortgages mentioned to be advanced by such mortgagees respectively and to be repaid the sum so advanced with interest without any preference one above another by reason of the priority of advancing such moneys or the dates of any such mortgages respectively.

Protection of
lenders from
inquiry.

48. A person lending money to the Corporation shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss or non-application of the money lent or of any part thereof.

As to repay-
ment of
borrowed
moneys.

49. All moneys borrowed by the Corporation under the provisions of this Act without the consent of the Board of Trade or Local Government Board may be borrowed for any terms not exceeding the terms hereinafter respectively mentioned from the date of the original loan (that is to say) :—

As regards moneys borrowed for the purpose of paying the costs charges and expenses aforesaid five years ;

As regards moneys borrowed for the purposes of Part III. of this Act and for lands and easements required in connection therewith fifty years ;

As regards moneys borrowed for any other purposes thirty years ;

And all moneys borrowed by the Corporation under the authority of this Act with the consent of the Board of Trade or the Local Government Board may be borrowed for such term not exceeding sixty years as the Board of Trade or the Local Government Board (as the case may be) may prescribe :

And subject as aforesaid all moneys borrowed by the Corporation under the authority of this Part of this Act shall be repaid by yearly or half-yearly instalments or by means of a sinking fund Provided that when the payment shall not be made by equal instalments the instalment or instalments payable in each year together with the interest payable in such year in respect of the principal moneys owing of which such instalment or instalments form part shall in every year amount to the same sum :

But it shall not be obligatory on the Corporation in the case of moneys borrowed for tramway purposes to commence any such repayment by instalments or to set apart or appropriate any moneys to or for a sinking fund under this Act until the expiration of one year after the tramways or some part of the tramways by this Act authorised have been completed and opened for public traffic or

two years from the borrowing thereof whichever period shall be A.D. 1903.
the earlier :

And it shall not be obligatory on the Corporation in the case of moneys borrowed for the purposes of Part III. of this Act and for lands and easements required in connection therewith to commence any such repayment by instalments or set apart or appropriate any moneys to or for the sinking fund under this Act until the expiration of one year after the completion of the works for which such money is borrowed or until the expiration of two years from the borrowing thereof whichever period shall be the earlier.

50. The Corporation in case they borrow any moneys on mortgage under the provisions of this Act repayable by means of a sinking fund shall (subject to the provisions of the section of this Act of which the marginal note is "As to repayment of borrowed moneys" with respect to money borrowed for tramway purposes and for purposes of Part III. of this Act) within twelve months after borrowing the same and thenceforth annually on the same or some earlier day set apart as a sinking fund for the payment of such moneys out of the revenue funds and rates on the security of which such moneys shall have been borrowed such equal annual sum or sums as will with accumulations by way of compound interest after a rate not exceeding three per centum be sufficient to pay within such a period as they may think fit (not exceeding the period by this Act in each case prescribed for the repayment thereof) the amount of the principal moneys so borrowed. Sinking fund.

All sums so set apart and the income thereof shall from time to time be invested in any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security (not being annuities rentcharges or securities transferable by delivery) authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Corporation.

If and as often as the income derived from such investments is not equal to the income which would be derived therefrom at the rate per centum on which the equal annual payments to the sinking fund are based any deficiency shall be made good out of the revenue funds and rates which are liable for the equal annual payments and if and as often as the income derived from such investments is in

A.D. 1903. — excess of the income which would be derived therefrom at the rate per centum on which the equal annual payments to the sinking fund are based any such excess may be applied as part of such equal annual payments.

The Corporation may at any time apply the whole or any part of the sinking fund in or towards the repayment of moneys for which such sinking fund is set aside in such order and manner as they deem proper. Provided that in such case they pay into the sinking fund in each year afterwards and accumulate as hereinbefore prescribed until the whole of such moneys are discharged a sum equal to the interest produced by the sinking fund or part thereof so applied at the rate per centum on which the equal annual payments to the sinking fund are based. Provided also that whenever and so long as the securities in which such sinking fund is invested shall be not less in value at the market price of the day than the principal moneys then outstanding and to be paid off by means of such fund the Corporation may in lieu of investing the said yearly income apply the same in payment of interest on such principal moneys and may during such periods discontinue the payment to such sinking fund of the yearly sums required to be paid thereto.

Annual return to Local Government Board with respect to repayment of moneys borrowed on mortgage.

51. The town clerk shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceeding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Part of this Act or in respect of moneys raised thereunder and at any other time when the Local Government Board may require such return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if so required by that Board verified by statutory declaration of the town clerk showing for the year next preceeding the making of such return or such other period as the Local Government Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount remaining invested at the end of the year and in the event of his failure to make such return such clerk shall for each offence

be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1903.

If it appear to the Local Government Board by such return or otherwise that the Corporation have failed to pay any instalment or annual payment or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that a sum in such order mentioned not exceeding double the amount in respect of which default shall have been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

52. The proceeds of the sale of any lands acquired by the Corporation under the powers of this Act and the fines and premiums on any leases granted by the Corporation under this Act shall be applied in or towards the discharge of any moneys borrowed by the Corporation under the powers of this Act and for the time owing or if there be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Corporation Provided that any moneys so received by the Corporation when used to pay off borrowed moneys shall not be applicable to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board. Proceeds of sale of surplus lands to be treated as capital.

53. The Corporation may from time to time borrow at interest on mortgage as aforesaid any money necessary for repaying any principal moneys borrowed under the foregoing provisions of this Act on the same becoming repayable or for paying off any part of any of such principal moneys as they can borrow at a lower rate of interest Provided as follows:— Power to re-borrow.

- (1) The time for repayment of any moneys so re-borrowed shall not be extended beyond the unexpired portion of the terms respectively in that behalf prescribed:

A.D. 1903.

(2) For the purpose of repayment all moneys so re-borrowed and the moneys originally borrowed shall be deemed the same loan :

(3) The Corporation shall not re-borrow any money paid off by means of instalments or a sinking fund or appropriations or annual repayments or out of the proceeds of the sale of surplus lands or out of premiums or fines on leases or other moneys received on capital account not being borrowed moneys.

Power to
borrow under
Local Loans
Act.

54. The Corporation if they think fit may borrow the moneys which they are by this Act authorised to borrow or any part thereof under the powers and subject to the provisions of the Local Loans Act 1875 by means of a loan or loans to be raised by the issue of debentures debenture stock or annuity certificates or partly in one way and partly in another.

Any moneys borrowed in manner by this section authorised for any of the purposes of this Act shall be a charge upon and shall be paid out of the same revenue funds and rates as they would be charged upon and paid out of if raised by mortgage under this Act and such revenue funds and rates shall in each case be the local rate within the meaning and for the purposes of the Local Loans Act 1875.

Every such loan shall be discharged within the respective periods prescribed by this Act.

The section of this Act of which the marginal note is "Sinking fund" shall apply to any sinking fund provided by the Corporation for the repayment of any moneys so borrowed by them under the Local Loans Act 1875 in lieu of the provisions of section 15 of that Act.

Tramway
revenue.

55. For the purposes of the Act of 1900 the Brighton Corporation Tramways Order 1902 and this Act the expression "the tramway revenue" shall in the Act of 1900 and in that Order and this Act mean and include all moneys received for or in relation to the Corporation tramways other than borrowed moneys and other moneys which ought to be carried to the account of capital and the provisions of section 85 of the Act of 1900 shall extend and apply to the keeping and auditing of accounts and to the accounts kept of moneys received and paid under this Act in relation to the Corporation tramways.

As to ex-
penses of
electric
works.

56. The subway by this Act authorised and the works authorised by Part III. of the Act of 1900 shall be deemed to

form part of the undertaking authorised by the Brighton Electric Lighting Order 1883 as amended by this Act and any expenses incurred by the Corporation in relation to the supply of electricity to other local authorities companies or persons in bulk or for the working of railways or tramways under this Act shall be deemed to be part of the working and establishment expenses of that undertaking and all moneys from time to time received by the Corporation in respect of such supply shall be applied in manner provided by section 58 of that Order. A.D. 1903.

57. All money borrowed under the foregoing provisions of this Act shall be appropriated to purposes for which it is authorised to be borrowed and shall be expended exclusively on works or objects on which capital may properly be expended. Application of money borrowed.

58. Nothing in this Act shall prejudicially affect any charge on the borough fund and borough rate or district fund or general district rate by way of mortgage or otherwise subsisting at the passing of this Act and every mortgagee or incumbrancer or person for the time being entitled to the benefit of any such charge shall have the same priority of charge and all the like rights and remedies in respect of the property subject to his charge as if this Act had not been passed and all such charges created before the passing of this Act shall during the subsistence thereof have priority over any mortgage or other security granted created or issued under this Act. Saving for existing charges.

59. Notwithstanding anything in the Act of 1900 or any other Act contained it shall not be obligatory on the Corporation to commence the repayment by sinking fund or otherwise of any money borrowed or to be borrowed by the Corporation under the powers of such Act for the purpose of Part III. of such Act and for lands and easements required in connection therewith until the expiration of one year after the completion of the works for which such money is borrowed or until the expiration of two years from the date of the passing of this Act whichever period shall be the earlier. Postponing repayment of money borrowed for electricity purposes.

60. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties.

A.D. 1903.

Compensation &c. how to be determined.

61. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts.

Compensation may be in land &c.

62. The Corporation when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the case of land for the alienation of which the consent of any public department is required only with such consent.

Saving for indictment.

63. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that no person shall be punishable twice for the same offence.

Judges &c. not disqualified.

64. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Powers of Act cumulative.

65. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them by the Public Health Acts or any of them and the Municipal Corporations Act 1882 and any Act amending the same and the Corporation may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty) for the commission of the same offence.

Corporation not to regard trusts.

66. The Corporation shall not be bound to see to the execution of any trust whether expressed or implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall from time to time be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof

or interest thereon not entered on their register and the Corporation shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money. A.D. 1903.

67. Proceedings for the recovery of any demand not exceeding fifty pounds made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court. Recovery of demands under fifty pounds.

68.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purpose of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875. Inquiries by Local Government Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

69. Nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or of the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty. Saving rights of Crown.

70. The costs charges and expenses preliminary to and of and incidental to the preparing of and applying for and the obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons and the costs incurred by the Corporation in or with the object of complying with the Costs of Act.

A.D. 1903. — provisions of the Borough Funds Act 1872 with respect to the Bill for this Act shall be paid by the Corporation out of the borough fund and borough rate and the district fund and general district rate in proportions to be hereafter determined by the Corporation or out of moneys borrowed under the authority of this Act for that purpose and before borrowing such moneys the Corporation shall by resolution determine the proportions in which the funds on the security of which such moneys are borrowed shall contribute in respect of such loans.

The SCHEDULE referred to in the foregoing Act. A.D. 1903.

LAND AND PREMISES IN AND OVER WHICH EASEMENTS ONLY MAY
BE TAKEN.

Work.	Parish.	Numbers on Plan.
Subway - -	Parish and urban district of Southwick.	26 27 28 29 30 31 32 and 33.

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